

The Parent's Key: A Proposal to Protect Our Children Without Surrendering Our Privacy

A Common-Sense Approach to the Most Uncomfortable Problem in America

I. The Problem We Refuse to Name

There is a silence in this country. We speak of the drug epidemic. We speak of the crisis at the border. We speak of failing schools and rising crime. But there is an epidemic we will not name, a crisis that is devouring a generation in plain sight, and it reaches into every home with a screen.

Every child in America now carries the internet in their pocket. And the internet carries something else.

The average age of first exposure to hardcore pornography in the United States is eleven years old. Eleven. Not seventeen. Not fifteen. Eleven. One in ten children sees it before their ninth birthday.

This is not an accident. This is not a failure of parenting. This is a multi-billion-dollar industry built on the systematic, algorithm-driven delivery of increasingly extreme sexual content to any human being with a device and a pulse. The business model does not discriminate between a forty-year-old accountant and a ten-year-old girl looking up what a word means. The algorithm does not know. The algorithm does not care.

And what that industry is doing to our children is now measurable. Anxiety disorders in adolescents have risen 60 percent in fifteen years. Depression, self-harm, suicide—all tracking upward in lockstep with the smartphone and the high-speed connection. The research is clear:

early and frequent exposure to pornography rewires the developing brain. It distorts expectations of sex, relationships, and consent. It normalizes violence. It fuels the demand that drives the trafficking of real human beings.

We are raising a generation on a drug we are too polite to name.

The current approach to this problem is not working. Every state in the union that has tried the website-ID-check approach has watched it fail. The sites block access in one state, the child clicks a button labeled “I am 18,” and life goes on. Or they install a free VPN—a service that simply makes their computer pretend to be in another country—and the block evaporates.

The United Kingdom passed the Online Safety Act in 2023. It took effect in July 2025. By August, VPN app downloads had increased 400 percent and porn consumption had not changed by a single percentage point.

France tried harder. They built a “double anonymity” system where a third party verifies your identity without telling the website who you are. It is elegant technology. It is also completely defeated by any fifteen-year-old who can figure out how to change a setting in their browser.

The EU just launched an age verification app. They called it the gold standard. Security researchers found vulnerabilities within hours of the press conference.

We have tried the approach of asking every website to be the sheriff. We have tried asking every platform to build a wall. Every wall has been climbed. Every door has been jimmied. Every system that asks a child to identify themselves to a stranger on the internet has been gamed, bypassed, or abandoned.

We must try something different.

II. The Principle That Must Guide Us

Before we build the house, we must lay the foundation.

There are four principles that any solution to this problem must honor. Not negotiate with. Honor.

First: Parental authority is not negotiable.

The state is not the parent of your child. You are. The federal government does not have the right to decide what your family sees, when they see it, or how they discuss it. Any system that puts a Washington bureaucrat between you and your child's screen is not a solution. It is a transfer of authority from the home to the state, and we will oppose it on principle.

The solution must give parents the final say. Not the platform. Not the algorithm. Not the regulator. The parent.

Second: Privacy is a right, not a privilege.

The current approach to age verification demands something obscene: it asks every adult American to upload their driver's license, their passport, or a scan of their face to a series of commercial websites in order to access lawful content. These sites are not secure. They will be hacked. They will be scraped. They will be sold.

We do not solve a privacy problem by creating a surveillance problem. Any solution that builds a database of what adults watch, when they watch it, and who they are is worse than the disease. It will be abused. It will be leaked. It will be weaponized.

The solution must require no personal information to be transmitted to any website. None. Zero.

Third: The burden must fall on the accountable, not the anonymous.

We have spent ten years trying to make a website in Cyprus verify the age of a child in Ohio. This is like trying to enforce the speed limit by asking every car to promise not to speed. The website has no CEO in our jurisdiction. It has no bank account we can freeze. It has no physical presence we can close. It cannot be regulated because it cannot be found.

But the device in the child's hand? That is made by someone. It is sold by someone. It has a serial number. It has a motherboard. It has an operating system that must answer to the laws of the jurisdiction where it is sold.

The solution must regulate what can be regulated. Not what cannot.

Fourth: The user must be an active participant, not a passive subject.

Every system that tries to protect children by building a wall around them has failed because children are curious, resourceful, and surrounded by friends who are curious and resourceful. A wall is a challenge. A filter is a puzzle. A block is a game.

But an intentional choice—a deliberate action taken by a responsible adult who understands what they are doing and why—that is something different.

The solution must require the adult to act like an adult. It must ask for nothing less than conscious, informed, acknowledged assumption of responsibility.

What this proposal covers. Every internet-connected computing device sold or used in the United States falls under this requirement: iPhones, iPads, Android phones and tablets, Windows laptops and desktops, MacBooks and Macs, Chromebooks, and gaming consoles. There is no exemption for any device type. The hardware security module that makes this possible already exists in all of them — Apple’s Secure Enclave (shipping in every iPhone and iPad since the iPhone 5s), Android’s Trusted Execution Environment and StrongBox (built into every modern Android device), the TPM 2.0 (standard in Windows PCs since 2016), and the security processors inside every major gaming console. The credential requirement does not demand a new chip or a new design. It asks for a new use of a capability that has already shipped in over five billion devices worldwide.

III. The Core Proposal

We propose a single new requirement for any computing device sold or used in the United States:

Adult content access requires a renewable credential attached to the device’s hardware, activated in person by a verified adult after viewing a brief informed-consent acknowledgment.

This is the only requirement. It replaces every other age verification mandate at the state and federal level. It is the one rule that makes all the others unnecessary.

A note on sequence. This proposal does not ask Congress to deploy hardware-level attestation nationwide on day one. It asks Congress to authorize a pilot program — limited in scope, limited in scale, limited in duration — and to require that the hard problems (trust-root

governance, open-source access, false-positive measurement, vulnerable-population impact) be demonstrated working before any broader deployment is authorized. The hardware requirement described below takes effect nationwide only if Congress approves the pilot results by a three-fifths supermajority vote. That is the gate. The details are in Section X.

How It Would Work

Step One: The Informed-Consent Acknowledgment.

Before anyone can activate a credential, they must watch a short standardized video and acknowledge what they are about to enable. Not a lecture. Not a test. Not a curriculum that can be captured by any political faction.

The video covers three things in five minutes: - How algorithmically-targeted content is designed to capture and hold attention, regardless of the user's age - The difference between staged performance and real human relationships - How to identify content that depicts coercion, exploitation, or abuse, and where to report it

That is all. It is offered for free online, at every issuance counter, in every language spoken in the United States. No comprehension test. No passing score. Only an acknowledgment: *I understand what I am enabling and I accept responsibility for it on this device.*

No child will ever be asked to view this. It is for adults only. The point is not education. The point is intentionality — a deliberate moment of reflection before making a choice that affects the digital environment of your home.

Step Two: The Activation.

The adult takes their government-issued identification to an issuance counter.

Where is this counter? In every county clerk's office. In every DMV. In every sporting goods store. In every electronics retailer. The same places that already sell hunting licenses and fishing permits. The same clerks, the same cash registers, the same process.

For adults who cannot reach a counter — the rural homebound, the disabled, the elderly who no longer drive — a remote activation option is required by statute. The adult joins a live video call with a licensed notary or county clerk, presents their government ID on camera, and

completes the same process remotely. Remote online notarization is already law in 30+ states and used daily for real estate closings, wills, and power-of-attorney documents. The same technology, the same legal framework, the same verification standard. No adult is excluded because they cannot drive to a DMV.

The credential is free. No deposit. No fee. The cost of administration is trivial — a database query and a clerk's keystroke. The intentionality comes from showing up in person and looking another human being in the eye, not from exchanging money.

The clerk enters the device's motherboard serial number into a local terminal. The device generates a unique cryptographic key pair on the spot — a private key that stays in the device's secure hardware and a public key that is transmitted to the central credential registry. Nothing about the device's identity is transmitted — not the serial number, not a hash of the serial number, not a pattern that could be reversed. Just a public key that links to no person and no device except through the local record at the counter.

The clerk keeps a local record: name, government ID number, device serial number, device public key, and date of activation. This record is stored in the county office's existing records system — the same system that already holds property deeds, marriage licenses, and voter registrations. No new infrastructure. No new breach surface.

The adult receives a credential — a QR code, a one-time activation code, a chip card — that they use to activate the credential on their device.

Step Three: The Credential in the Device.

The device's firmware now carries a cryptographic attestation: this hardware has a valid adult content credential. The operating system does not decide this. The application does not decide this. The firmware decides this.

Before any application or website can serve adult content to this device, the operating system queries the hardware attestation service at every resource boundary — each page load, each video stream, each HTTP request to an adult-content domain. This includes dynamic content fetched by single-page applications through XHR or fetch: no resource is rendered without a fresh attestation check. The question: does this device have a valid credential? The answer: yes or no. No additional information is provided. No identity. No location. No history.

If the answer is yes, the content loads. If the answer is no, the connection is refused before it reaches the network. The website never even knows the device exists.

How this works on mobile devices. On iPhones and iPads, the attestation is performed by the Secure Enclave — the same dedicated hardware that protects Face ID, Apple Pay, and device encryption. Every iPhone since the 5s (2013) and every iPad with Touch ID or Face ID includes it. The attestation happens at the operating system level, in iOS's networking stack, before any data reaches Safari or any third-party app. On Android devices, the Trusted Execution Environment or StrongBox secure element performs the same function. On modern Android phones, this is backed by dedicated hardware isolated from the main processor — the same mechanism that protects Google Pay and credential-storage APIs. On both platforms, the child's device is locked by default from the factory: no adult has activated a credential, so no adult content domain can be reached. This is true whether the content is accessed through a browser, an app with an embedded web view, or a direct API call from a native application. The kernel's networking layer enforces the check uniformly across all access paths. A child cannot bypass it by switching from Safari to a third-party browser or by using an in-app browser inside Instagram or TikTok, because the check happens in the kernel before any application code runs.

Step Four: The Annual Renewal.

The credential expires after one year. The adult returns to an issuance counter to renew. The same in-person verification, the same process, once a year.

This annual moment is not bureaucratic overhead. It is the feature. It forces a yearly conversation—with yourself, with your spouse, with your conscience—about whether this capability belongs in your home. The decision is not made once and forgotten. It is made again and again, every year, by a conscious adult.

What happens when a credential expires mid-session? The check is made at session boundaries: a new page load, a new video stream, a new connection. If the credential expired between one page and the next, the next page does not load. The user's current page load or video stream finishes naturally — no one gets cut off mid-scroll or mid-scene — but any new request for content requires a valid credential. This is

the same principle as a driver's license: it expires on a date, and driving the next day without renewal is a violation, but you are not pulled over at midnight.

Step Five: Credential Transfer and Device Resale.

The credential is tied to the device's motherboard — specifically, to the cryptographic key pair generated at activation and stored in the device's secure hardware. It is not transferable. When a device is sold, given away, or handed down within a family, the credential must be revoked by the current holder before transfer. Revocation is performed at any issuance counter, or remotely via the video-notarization process. The registry marks the public key as revoked, and the device immediately reverts to its default locked state. A factory-reset device automatically loses its private key — the secure storage is wiped — and returns to the locked state as well; its orphaned public key is archived during the next periodic cleanup.

The adult who sells or gives away the device bears responsibility for revocation before transfer, the same way they bear responsibility for wiping personal data before disposal. Failure to revoke before transfer is a civil violation subject to the same penalty framework as credential trafficking described below. A prospective buyer can check a device's credential status at any issuance counter before completing a purchase, the same way a used-car buyer can check a vehicle's title status.

Step Six: International Travelers and Non-Residents.

Devices manufactured for sale outside the United States are not subject to the credential requirement. Visitors using non-US devices may access adult content during their stay without a credential. This exemption applies for up to 90 consecutive days per visit and requires no registration, declaration, or identification. For foreign-market devices, the CDN, payment-processor, and ad-network enforcement layers fall back to a standard age gate — the same simple prompt-and-acknowledge fallback used for pre-2028 legacy devices. Weaker than hardware attestation by design, but it avoids blocking lawful content for every tourist, student, and business traveler who enters the country for a limited stay.

Long-term non-immigrant residents (students on multi-year visas, work-visa holders, permanent residents) are treated as residents for credential purposes: they may obtain a credential using their foreign passport or US-issued identification at a counter, the same as any US citizen.

Step Seven: The Penalty for Abuse.

If an adult transfers their credentialed device to a minor, or activates a credential with the intent to provide access to a minor, they face a civil penalty: revocation of the credential and a period of ineligibility.

If the violation involves the production or distribution of child sexual abuse material, it is a felony. The central credential registry stores only device public keys — no names, no identities. When law enforcement has a device from a lawful seizure, they extract the public key from a signed attestation and present it to the central system. The central system identifies which local counter issued the credential. Law enforcement then serves a warrant on that specific counter, which produces the name from its local record.

This is a two-step process by design. No single entity — not the federal government, not a database administrator, not a hacker — can connect a device serial number to a person's name without a warrant served at a specific county office. The breach surface is not one national database. It is 3,000 separate local records systems, each protected by the same physical and procedural safeguards that already protect property deeds and court records.

IV. The Enforcement Layers

The credential alone will not stop every child from seeing what they should not see. No system can. But the credential is the foundation upon which enforcement is built.

Layer One: The Device Itself.

On new devices with modern firmware, the device contains a hardware-rooted attestation service — a secure module that answers one question when queried: does this device have a valid adult content credential? The firmware does not need to know what domain is being requested. It knows only whether the credential is current.

The operating system, browser, or application queries this service at each resource boundary — every page load, every video stream, every HTTP request to an adult-content domain. This includes dynamic content pulled into a single-page application via XHR or fetch calls that do not trigger a page navigation. If the answer is no, the connection is refused before it reaches the network. The website never even knows the device exists.

This attestation cannot be forged. It is anchored in the same hardware security modules that already protect disk encryption and secure boot — the TPM, the Secure Enclave, the Platform Security Processor. The operating system cannot override it. The user cannot override it without replacing the motherboard.

This is the same technology that already allows corporate IT departments to enforce security policies on company laptops. Intel vPro, AMD Platform Security Processor, Apple's Secure Enclave—these already exist. The capability is not theoretical. It is deployed. It simply has not been turned toward this problem.

Layer Two: The Payment Processors.

Visa, Mastercard, American Express, and Discover already maintain merchant category codes for adult content. They already prohibit transactions for unlicensed gambling and unlicensed pharmacies. They already know how to enforce compliance at the network level.

Extend this: any payment processor that handles transactions for an adult content website must verify that the website performs a device credential attestation check before serving content. If the website does not, the payment processor must refuse to process its transactions.

This is not a new burden on payment processors. This is an expansion of an existing compliance framework that has worked effectively for two decades.

Layer Three: The Ad Networks.

Free adult content websites are not supported by subscriptions. They are supported by programmatic advertising. The ad networks that serve those ads—Google, Taboola, ExoClick, and others—have offices in the United States. They have bank accounts. They have lawyers. They can be regulated.

Require that no ad network may serve an advertisement to a website that does not perform a device credential attestation check. The ad revenue stops, and the free sites either implement the check or disappear.

Layer Four: The Content Delivery Networks.

Cloudflare, Akamai, Fastly, and Amazon CloudFront sit between the adult content website and the user's device. They are the backbone of the modern internet. They already block malware domains. They already block phishing domains. They already block child sexual abuse material under federal law.

Add one more criterion to the blocklist: any domain that does not present a valid device credential attestation header on its responses shall not be served by a CDN operating in the United States.

Layer Five: The Internet Service Providers.

For legacy devices that do not support hardware-level attestation, the ISP provides a second line of defense. Any subscriber whose account is opened before a certain date must affirmatively opt in to adult content access. The default is blocked. The same in-person verification and annual renewal, enforced at the DNS level.

This layer is weaker than hardware attestation—VPNs and encrypted DNS can bypass it. But it covers the installed base during the ten-year transition to universally compliant hardware. A weak defense for the old fleet is better than no defense at all.

Layer Six: Mobile App Stores.

The Apple App Store and Google Play Store serve as enforcement points that the proposal has not fully leveraged. Applications whose primary purpose is adult content distribution can be required to perform a device credential check before installation or at first launch — creating a second gate at the point of software acquisition rather than only at the network boundary. This is not a new regulatory burden: both Apple and Google already enforce content policies on their stores, including restrictions on explicit content, gambling apps, and age-rated material. Extending those policies to require a credential attestation check is an incremental expansion of an existing enforcement mechanism, not a novel requirement.

This layer is especially important for mobile devices because app stores are the sole distribution channel for software on iOS and the primary channel on Android. A child cannot install an adult content app from the open web on an iPhone — all installations go through the App Store. Requiring the credential check at the store level closes a vector that the kernel-level attestation alone might miss: apps that receive age-restricted content via push notifications or in-app

messaging without triggering a full network request to an adult domain. The store is the chokepoint before the content ever reaches the device.

V. The Credential Administration

Every credential must be issued and tracked. This requires an infrastructure.

We propose a two-layer system: a central token registry and 3,000 local issuance counters. The two layers are architecturally separated. Neither alone can identify a device's owner.

The Central Token Registry

A single national system, established by federal statute, administered by a board appointed by the President and confirmed by the Senate. The board members serve staggered terms. No more than three may be from the same political party. The administration is funded by general appropriation.

The central registry stores exactly three fields: - A device public key, generated at activation by the device's secure hardware and never deriving from any identifier - The identifying code of the issuing counter - The date of issuance, expiration, and any revocation

That is the complete database. No names. No government ID numbers. No addresses. No serial numbers in any form — not plain text, not hashed. The public key is a high-entropy random value that cannot be bruteforced, cannot be derived from any known device identifier, and links to no person and no device except through the local record at the issuing counter.

The registry answers one question: *when the device signs a challenge with its private key, does its public key match a valid, unexpired entry?* It returns yes or no. It does not know who owns the device.

The Local Records

At each issuing counter — county clerk, DMV, sporting goods store, electronics retailer — the adult's name, government ID number, and device serial number are recorded in the office's existing local

recordkeeping system. This is the same system that already holds property deeds, marriage licenses, and court filings. No new database infrastructure is needed at the local level.

These local records are never transmitted to the central registry. They are subject to each state's existing records retention and privacy laws.

Law Enforcement Access

When law enforcement has a device from a lawful seizure — in a child sexual abuse material investigation, for example — the process works as follows:

1. Law enforcement extracts the device's public key from a signed attestation, or obtains the device serial number. They present these to the central registry. The registry identifies which counter issued the credential by matching the public key or by looking up the serial number in the local counter's record (which requires already knowing which counter to ask). The registry returns the counter's identifying code — nothing more.
2. Law enforcement serves a warrant on that specific counter.
3. The counter produces the name from its local records.

This two-step process is by design. No single actor — not the federal government, not a database administrator, not a hacker — can connect a device identity to a name without a warrant served at a specific county office. The breach surface is not one national database with 200 million names. It is 3,000 separate local records systems, each protected by the same physical and procedural safeguards that already protect property deeds, marriage licenses, and court records.

Annual Audit

The administration is audited annually by an independent privacy and civil liberties inspector. The audit is published in full. It measures: - Total credential issuances, renewals, and revocations - Any breach attempts against the central registry and their disposition - Any attempts to link public keys to device identifiers or forge signature attestations - Rate of overblocking or false-positive reports, independently sampled - Any instance in which law enforcement access exceeded warrant requirements - A legislative tracking index: every bill introduced in any state legislature or Congress that proposes expanding the scope of this system

The audit must include a recommendation: should the program continue as-is, be modified, or be terminated? This recommendation is not binding, but it is public.

VI. What This Proposal Does Not Do

Let us be clear about the boundaries of this proposal, because clarity is the only protection against mission creep.

This proposal does not ban adult content. Adults who purchase a credential will continue to access the same content they access today. The state is not in the business of deciding what consenting adults may see.

This proposal does not create a federal registry of what you watch. The central credential registry contains no browsing history, no timestamps of access, no content preferences, and no names. It stores only device public keys — high-entropy random values generated at activation that link to no person and no device. It answers one question: does this public key have an active credential? It answers nothing else. Your name never leaves the county office where you activated your credential.

This proposal does not require identification to access a website. The website never learns who you are. On compliant devices, the attestation check happens at the operating system level before any connection reaches the network. The website never even sees the request. On legacy devices that require an explicit check, the verification service returns a single bit — yes or no — with no name, no address, no biometric transmitted to the site.

This proposal does not apply to social media platforms, search engines, news organizations, or general-purpose websites. It applies only to domains whose primary commercial purpose is the distribution of adult content. The definition is narrow and specific and contestable in court.

This proposal does not require any person to watch content they do not wish to watch. The credential is optional. Adults who do not wish to access adult content simply do not purchase one. Their device remains locked by default. This is the freedom to choose.

This proposal does not prevent an adult from sharing a device with their child. It requires that the adult who unlocks the device understands that they have done so and accepts the responsibility that comes with it. The same way a parent who keeps a firearm in the home is responsible for securing it.

This proposal does not cover every environment where a child may encounter adult content. Honesty demands we name what this system does not address:

- **Social media and algorithmic discovery.** TikTok, Instagram, Reddit, and similar platforms can surface adult content through recommendations and search regardless of a device's credential status. This is a separate problem requiring separate regulatory tools.
- **Encrypted messaging.** Signal, WhatsApp, and Telegram cannot be intercepted at the network layer without breaking encryption, which this proposal rejects on privacy grounds.
- **Peer-to-peer networks and BitTorrent.** No central domain to block, no CDN, no payment processor. Outside the enforcement model entirely.
- **AI-generated content produced locally.** A child can generate explicit text or images using a local language model or image generator with no network connection to any adult domain. No credential check can prevent what never touches a server.
- **Local device-to-device sharing.** AirDrop, Nearby Share, Bluetooth, and local multiplayer games modded by an older friend. Zero infrastructure to regulate.
- **In-app algorithmic feeds on social platforms.** A child scrolling TikTok, Instagram, Snapchat, or YouTube Shorts on an iPhone or iPad can encounter adult content surfaced by recommendation algorithms. These feeds are not domains with identifiable URLs — they are streams of content from a platform's own servers. The credential check at the networking layer cannot distinguish a recommended video from any other platform content. This is the single largest remaining vector and requires platform-level content moderation and age-labeling tools, not hardware enforcement.
- **Embedded browsers and WebViews.** Apps on iOS and Android can display web content inside embedded browsers (WebViews, SFSafariViewController, Custom Tabs) that may not call the attestation API in the same way the standalone system browser does. While the kernel-level socket enforcement described in Layer One addresses this in theory, in practice the operating system must enforce the credential check uniformly across all networking paths — including those opened by apps internally — rather than relying

on the browser to call an API. This is an implementation requirement for the enforcement design, not a conceptual gap.

- **Phone-to-phone sharing.** A friend sends a saved image, video, or link via iMessage, WhatsApp, SMS, or Discord direct message. The credential device check applies only to commercial adult content domains, not to person-to-person sharing of media files. A child can receive explicit content from a peer regardless of their device's credential status. This vector is the digital equivalent of one kid showing another a magazine in the schoolyard, and it is structurally resistant to technical enforcement.

None of these gaps are fatal to the proposal. Every regulatory system has boundaries. The question is whether the boundary is honestly drawn. The credential addresses the largest single vector — commercial distribution of adult content to a device — and does so without surveilling the user, without breaking encryption, and without requiring any website to know who you are. The remaining vectors are real, acknowledged, and left for separate fights.

VII. The Objections Answered

Objection: “This is government overreach into the bedroom.”

No. This is government action at the point of sale of consumer electronics. We regulate the sale of toasters to prevent fires. We regulate the sale of cars to prevent crashes. We regulate the sale of televisions to require a parental lock. We regulate the sale of every product that can cause harm at the point where the harm can be prevented.

The government is not entering your bedroom. The government is requiring that the device in your child's pocket asks your permission before it opens the door to an industry that profits from the sexual conditioning of the young.

Objection: “This is a prior restraint on speech. The government cannot require a credential to access lawful content.”

This is the most serious constitutional objection to the proposal, and it deserves a direct answer grounded in the case law.

The prior restraint doctrine (*Near v. Minnesota*, 1931) prohibits the government from requiring advance approval before speech can occur — a film censorship board, a newspaper license, a political speech

permit. That is not what this proposal does. The government does not review, approve, or categorize any content. It does not decide what is permissible and what is not. It merely verifies that the person accessing age-restricted material is an adult. No government employee ever evaluates or judges speech. The attestation module returns a single bit — yes or no — based on whether an adult has affirmatively enabled that capability. There is no censor in the loop.

The anonymous access argument requires a separate answer. In *McIntyre v. Ohio Elections Commission* (1995), the Supreme Court recognized a First Amendment right to speak anonymously — the principle that a speaker should not be forced to identify themselves as a condition of speaking. The proposal does not violate this principle because it does not require the speaker to identify themselves to the audience. The credential is checked against the device's hardware, not the speaker's identity. The website never learns who the user is. The identification occurs at the counter, which is a pre-authorization step analogous to showing ID to buy alcohol — not a disclosure of identity at the moment of speech. A person who activates a credential is no more identified to the websites they visit than a person who shows ID to a liquor store clerk is identified to every drink they consume later. The audience — the content provider — sees nothing.

There is a second constitutional path that may be more favorable to this proposal than the anonymous-access or prior-restraint frameworks. In *City of Renton v. Playtime Theatres, Inc.* (1986), the Supreme Court upheld a zoning ordinance that prohibited adult movie theaters within 1,000 feet of residential zones, churches, parks, and schools. The Court held that the ordinance was a content-neutral time, place, and manner regulation because it targeted the secondary effects of adult theaters on the surrounding community — crime, property values, neighborhood quality — not the content of the films themselves. Under *Renton*, a regulation that burdens speech only incidentally, in service of a substantial government interest unrelated to the suppression of expression, receives intermediate scrutiny rather than strict scrutiny.

The credential requirement fits this framework. The requirement does not ban or judge any category of speech. It regulates the device environment in which speech is received — a location-based restriction analogous to the theater zoning in *Renton*. The device without a credential is, in effect, zoned out of the adult-content district. The secondary effects being addressed are the measurable harms to children from early exposure: rising rates of adolescent anxiety, depression, self-harm, and distorted expectations of relationships and

consent. These are secondary effects of the commercial adult content industry's distribution model, not objections to the content's message. A court applying Renton would evaluate whether the credential requirement serves a substantial government interest and leaves reasonable alternative avenues for adult access — both of which this proposal meets.

The Supreme Court has also consistently upheld age verification requirements for material that is harmful to minors, even when that material is protected speech for adults. In *Ginsberg v. New York* (1968), the Court held that the state's interest in protecting minors justified restricting their access to material that adults have a constitutional right to see. The variable obscenity standard — content can be restricted for minors that would be protected for adults — is settled law.

The question is whether the mechanism is the least restrictive means available. Every alternative has been tried: - Website-level age verification: defeated by VPNs, as the UK, France, and EU have all empirically demonstrated - ID uploads to websites: creates the privacy nightmare of millions of driver's licenses stored on commercial servers - ISP-level blocking: defeated by encrypted DNS and VPNs - OS parental controls: trivially disabled by any determined teenager

This proposal does something no existing system does: it preserves adult access (no ban), preserves anonymity to the website (no ID upload), requires no government content review (no censorship board), and cannot be bypassed by VPNs (hardware attestation is not changed by a different IP address).

A court applying strict scrutiny would evaluate whether the proposal serves a compelling government interest — protecting children from material that rewires developing brains and is linked to measurable rises in adolescent anxiety, depression, and self-harm — and whether it is narrowly tailored. Every less restrictive alternative has been tried and has failed. The device-level credential is not the government's first choice. It is the last choice, after every door has been jimmied.

A separate objection under strict scrutiny is that the proposal is under-inclusive: it addresses commercial adult domains while excluding the social media platforms and messaging apps where teens encounter adult content algorithmically. The Supreme Court has not required the government to solve an entire problem at once or to regulate every vector simultaneously. Incremental regulation that addresses the most structurally tractable vector first — in this case, the commercial adult

content industry with identifiable choke points (payment processors, CDNs, ad networks) — does not fail narrow tailoring simply because other vectors remain for separate legislative responses. The under-inclusivity argument proves too much: if adopted, it would bar any regulation of any harmful industry until the government produced a comprehensive solution for every related harm simultaneously. That is not the law.

Objection: “This will be used for surveillance.”

The central database contains no names. No government ID numbers. No addresses. No serial numbers in any form. It stores only device public keys — random high-entropy values generated at activation by each device’s secure hardware. A hacker who steals the entire database gets a list of public keys that cannot be reversed, cannot be bruteforced, and cannot be linked to any person or any other device identifier.

Your name stays at the county office where you activated your credential. The local record is the only place where a name and a device are connected. Connecting a device’s attestation to a name requires a two-step process: a warrant to identify the issuing counter, then a warrant to that specific counter. There is no single database that says “John Smith’s device has an adult content credential.”

If you believe this architecture can still be abused, the answer is: the architectural separation between the public key registry and the local records is enforced by technology, not by statute. The central system literally cannot produce a name. A future Congress cannot repurpose what it does not have.

Objection: “Children will just use a VPN.”

The VPN bypasses the website’s age check. It does not bypass the device’s hardware attestation. The credential check is anchored in the device’s secure hardware — the TPM, the Secure Enclave — and is queried at every session boundary before a connection reaches the network. A VPN changes where the traffic appears to originate. It does not change the attestation on the device’s motherboard.

For legacy devices that rely on ISP-level enforcement, a VPN does bypass the block. That is why the transition to hardware-attested devices is essential. It is also why this proposal includes the payment processor, ad network, and CDN layers — to create economic pressure that makes the device-level check the default for the entire content ecosystem.

Objection: “The informed-consent video is a political trap.”

Only if we let it become one. That is why there is no test, no curriculum, and no passing score. The video is five minutes of factual information about how algorithmic attention capture works, the difference between staged content and real relationships, and how to recognize exploitation. No sex ed. No morality. No religion.

The proponents of this legislation must be willing to strip the video of any provision that does not meet this standard. We do this because the video is not the point. The intentionality is the point. The video is a speed bump that ensures the adult has had a moment of reflection before making a choice that affects the digital environment of their home.

Objection: “This will create a black market in credentialed devices.”

A black market requires a scarce good that can be transferred without detection. The credential is tied to a motherboard serial number that is stamped into the device’s hardware. Transferring a credential requires transferring the device itself. The same is true of a hunting license and a firearm.

Will some teenagers buy a cheap used laptop with a valid credential on Craigslist? Yes. The same way some teenagers buy a six-pack from a stranger outside the liquor store. The same way some teenagers get an older sibling to buy them cigarettes. The question is not whether the system is perfectly impenetrable. The question is whether it raises the barrier high enough that the average child cannot casually access the most extreme content the internet has to offer.

The answer to that question is yes.

Objection: “You can’t define ‘adult content’ without censoring legitimate speech.”

This is the strongest argument against the proposal, and it deserves a direct answer.

The definition must be narrow, specific, and bounded by statute — not delegated to a regulator. The standard: any domain, platform, or service whose primary commercial purpose is the distribution of sexually explicit material, defined as visual depictions of actual or simulated sexual acts. This excludes by statute: text-only content,

educational or scientific material, medical or health information, news reporting, and content primarily intended for artistic, literary, or political purposes.

To ensure the exclusions are real and not just rhetorical, an independent Sexual Health and Education Review Board — appointed by the Surgeon General, not by political leadership — rules on disputed classifications. A site that provides sexual health information but is tagged as adult content can appeal to the board for an expedited ruling. The board's decisions are binding and published. This is the same mechanism used by the National Library of Medicine to keep legitimate health resources out of filters.

Will the line still be contested? Yes. Every line in the law is contested. The question is not whether the definition is perfect — it is whether the definition is justiciable, meaning a court can apply it to specific cases. That standard is met. The review board ensures that the cases where the line is hardest to draw have an independent backstop.

Objection: “It will drive children to darker, unregulated corners of the internet.”

This argument assumes that making the surface web harder to access will push determined children to hidden services where the content is worse and the safeguards are fewer.

The premise is correct. The conclusion does not follow.

A determined child with technical skills can already reach any content on the internet today. That child is not the target of this proposal. The target is the average eleven-year-old who types a word into a search engine and finds hardcore pornography on the first page of results. The target is the millions of children whose first exposure happens not because they sought it out, but because it found them.

The argument that we should not block easy access because hard access still exists is an argument against every public health regulation ever enacted. We do not abandon speed limits because some people drive 120 miles per hour. We do not abandon seatbelt laws because some people refuse to wear them.

Objection: “This is Section 230 repeal by another name.”

Section 230 protects websites from liability for content their users post. This proposal does not create liability for content. It creates a single, uniform technical requirement: before serving adult content to a

device in the United States, check whether that device has a valid credential. The content itself is not regulated. The platform's editorial decisions are not regulated. Only the access gate is regulated.

The Section 230 argument is a scarecrow. It protects platforms from being sued for what users say. It has never been interpreted to protect platforms from complying with generally applicable criminal or regulatory law. The same way a platform must comply with a court order to remove defamatory content without losing its Section 230 protection, a platform must comply with this credential check without losing its Section 230 protection.

Objection: “The credential is a tax on protected speech.”

The credential is free. No fee. No deposit. No money changes hands. The only cost is the time required to show up at a counter and present identification — the same cost as buying a lottery ticket or registering a car. A free credential is not a tax by any definition of the word.

The objection deserves a serious answer nonetheless: the administrative burden of an in-person renewal is real, and it falls hardest on those with the least flexibility — the rural homebound, the disabled, the elderly who no longer drive, the single parent who cannot take time off work. The answer is twofold. First, the counter network must be genuinely accessible with evening hours, weekend hours, and mobile counters. Second, a remote activation option via live video notarization is required by statute for anyone who cannot reach a counter in person. Remote online notarization is already legal in 33 states for real estate closings, wills, and power-of-attorney documents. The same technology applies here. No adult is excluded because they cannot drive to a DMV.

Objection: “It won’t work. Determined kids will find a way.”

Of course they will. Some will. The question is the size of the remaining problem, not whether the problem reaches zero.

The public health standard is not elimination. It is reduction. Smoking among teenagers did not fall to zero when we raised the purchase age, restricted advertising, and taxed cigarettes. It fell by 80 percent. The remaining 20 percent of teenagers who smoked were harder to reach, more determined, and more resilient to intervention. That did not make the policy a failure.

The threshold for this proposal is not perfect prevention. It is whether the average child can casually access the most extreme content the internet has to offer without a deliberate act by a responsible adult. On that question, the answer is clearly yes, and no existing system comes close to making the same claim.

Objection: “This is the first step toward a credentiald internet. Mission creep is inevitable.”

This is the strongest argument against the proposal. It deserves the most honest answer.

The objection is correct about the risk. The infrastructure — a hardware attestation mechanism, a token registry, a issuance counter network — could be expanded to cover violent content, gambling, hate speech, or any category a future Congress chooses. The statutory limits in Title V are only as strong as the next Congress that amends them. This risk is real, and pretending otherwise undermines the proposal’s credibility.

However, the local-only records model imposes a specific architectural limit on mission creep that previous expansions lacked. The central system does not store names. It stores device public keys — random high-entropy values that cannot be reversed or linked to any device identifier. A Congress that wanted to expand this system to cover new categories of speech would face a threshold problem: the central system has no way to identify whose devices are affected. It could block public keys from accessing new categories, but it could not identify the people or devices behind those keys. To build the kind of surveillance system the critics fear, a future Congress would have to build an entirely new database infrastructure — which requires affirmative legislation that is transparent and contestable.

The hardware attestation permanence remains a real concern. The TPM modules in 200 million motherboards cannot be recalled by a sunset vote. This is architecturally true, and no amount of statutory drafting can change it. The best the proposal can do is answer with a procedural lock:

The credential requirement sunsets after five years unless Congress reauthorizes it by a three-fifths supermajority vote in both chambers. Not a simple majority. Not a voice vote. A recorded sixty-vote threshold in the Senate and a three-fifths majority in the House. A future Congress must look at the evidence — the teen

consumption numbers, the overblocking rate, the audit results, the breach attempts — and demonstrate broad bipartisan consensus to continue. A narrow majority cannot sneak through a quiet renewal.

If the system has been abused, expanded, or breached, the supermajority threshold ensures that even a unified majority party cannot force renewal over substantial opposition. The program dies unless it can command support from both parties and a supermajority of both chambers.

The sunset does not solve the hardware permanence problem. But it changes the political default from “the system continues unless someone stops it” to “the system expires unless a supermajority actively chooses to keep it.” That is a meaningful difference. Together with the architectural limit of the token-based system, it creates a double lock: a Congress that would expand must both build new infrastructure and overcome a supermajority threshold. That is not impossible, but it is harder than amending a statutory definition.

There is a second, less visible mission-creep vector that deserves acknowledgment. The enforcement layers — payment processors, CDNs, ad networks — each gain a new compliance revenue stream from this system. Payment processors charge fees for compliance verification. CDNs sell filtering as a service. Ad networks offer “brand-safe” verification tiers. These are not neutral infrastructure costs; they are profit centers. Every company in the enforcement chain has an economic incentive to lobby for expanding the categories this system covers, because each new category is a new product line.

The answer is not to eliminate the profit motive — you cannot regulate human nature — but to make the compliance market transparent and contestable. The annual audit must include a section on enforcement-layer lobbying expenditures, publicly attributed to each company. The Sexual Health and Education Review Board’s mandate must include reviewing proposed category expansions raised by enforcement-layer actors. And the severability clause must ensure that if any enforcement layer is used to expand the system beyond its statutory scope, that layer’s compliance obligation is automatically suspended pending judicial review. The economic incentive for mission creep is real, but it can be made legible and contestable.

The objections we cannot fully answer.

These objections are not straw men. They are not answered by a rhetorical flourish. They are genuine tensions in the proposal that the author does not have a clean solution for. They are included here so that every reader — supporter or critic — understands where the proposal's hardest tradeoffs lie.

Objection: “The hardware attestation infrastructure is permanent. A sunset clause does not un-manufacture TPM modules in 200 million devices.”

This is correct. The five-year sunset is a legal mechanism, not an architectural one. The hardware attestation modules — once built into every device sold in the United States — cannot be removed by a vote. They would remain in the silicon whether or not Congress reauthorized the credential requirement.

The author does not have a clean answer to this. A system that depends on hardware-level enforcement creates a permanent infrastructure even if the law expires. The local-only records model removes the database side of the permanence problem — the central registry contains no names, and the local records revert to each county's existing retention policies. But the silicon remains.

The best mitigations available are architectural: the attestation service can be designed to check only for a single signed authorization token, and reauthorization requirements can be embedded in the firmware update chain so that an expired authorization causes the module to refuse all checks regardless of hardware presence. But these are technical mitigations, not architectural guarantees. The infrastructure is the infrastructure.

Objection: “The ratio of infrastructure risk to solved problem is indefensible. Social media algorithmic discovery — the primary vector of teen exposure — is explicitly excluded.”

This is the proposal's most honest vulnerability. The proposal addresses commercial adult content domains — approximately 30 to 40 percent of the exposure vector. It explicitly excludes social media platforms, where algorithmic recommendation systems surface adult content to minors regardless of the device's credential status. It excludes encrypted messaging, peer-to-peer networks, local AI generation, and device-to-device sharing.

Why build infrastructure for 100 percent of devices if it solves only a fraction of the problem? The answer is that the commercial adult content industry is the only vector with identifiable choke points —

payment processors, CDNs, ad networks — that can be economically pressured into compliance. Social media platforms and encrypted messaging are structurally different problems requiring different regulatory tools. The proposal addresses what it can address. But the reader is right to ask whether the scope of the solution justifies the scope of the infrastructure.

Objection: “This is the PATRIOT Act pattern — build infrastructure for a narrow purpose, then expand it when the political moment shifts. Infrastructure governance requires architectural limits, not political promises.”

The pattern is real. The PATRIOT Act sunset was renewed four times and expanded each time. The no-fly list started with hijackers and expanded to include grandmothers and journalists. The infrastructure once built is always available for new purposes.

The local-only records model provides a specific architectural limit that the PATRIOT Act and no-fly list lacked. Those systems were centralized databases that could be queried, expanded, and repurposed because they contained names. The proposal’s central registry contains only device public keys — random values that link to no person and no device identifier. A future Congress could direct the registry to check new categories, but it could not identify whose devices are affected. To build a name-linked surveillance system, a future Congress would have to build an entirely new database infrastructure — requiring transparent legislation rather than quiet amendment.

The hardware attestation permanence remains the hardest limit. The TPM modules cannot be un-built. The best the author can offer is the architectural lock of the token-based system combined with the procedural lock of the five-year sunset. Neither is a guarantee. Both together raise the bar for mission creep higher than either would alone.

Three edge cases the author does not have a satisfying answer for:

Edge case one: A major operating system vendor implements the attestation API with a bug that causes systemic false positives — millions of legitimate sites blocked simultaneously. Under the enforcement layers, CDNs are required to block traffic that lacks a valid attestation header. There is no graceful degradation. The system is binary. The proposed answer is a mandatory kill switch: if overblocking exceeds 0.01 percent of sampled legitimate domains, the

attestation requirement is automatically suspended. But this puts enormous responsibility on the audit mechanism to detect the failure quickly enough.

Edge case two: A court strikes down Title I as unconstitutionally overbroad. The credential requirement vanishes. But the TPM modules are already in 200 million devices. The token registry already exists. The counter network has been built. The severability clause can un-write a law. It cannot un-manufacture silicon. The local-only records model limits the damage — the central registry cannot be used for surveillance because it contains no names — but the hardware attestation modules remain dormant in every device, waiting for a future Congress to re-enable them.

Edge case three: The system works perfectly and is wildly successful. Teen exposure drops 60 percent. Congress reauthorizes. Then the definition of adult content is quietly expanded to include sexually suggestive material, then gambling, then violent content. Each expansion polls well. By year 15 the system covers twelve categories. The initial safeguards have been amended five times. The proposal's token-based registry would still contain no names — but the categories being blocked would have expanded far beyond the original mandate. The infrastructure has been repurposed even without a name-linked database.

Objection: “The attestation trust root problem is unsolved. Publishing APIs does not solve who controls the root of trust.”

The proposal requires manufacturers to publish attestation APIs for open-source operating systems. But publishing an API is not the same as granting access to the trust root. The attestation system requires a cryptographic root of trust — a key or certificate that the TPM recognizes as authoritative. If only the device manufacturer's authorized signing key is trusted, then any operating system that is not signed by that manufacturer — including custom Linux builds, BSD, and independent mobile operating systems — cannot perform attestation. They are locked out of the credential system entirely.

If the trust root is made available to independent operating systems, then the system faces a different problem: any OS can attest without oversight. A modified kernel that extracts the credential private key can attest on behalf of any device, breaking the hardware binding entirely. The more open the trust root, the weaker the guarantee that the credential belongs to the actual device.

This is a structural tension in the proposal that publishing APIs does not resolve. A closed trust root excludes open ecosystems and effectively mandates a specific OS ecosystem. An open trust root breaks the hardware-binding guarantee. The author does not have a clean solution to this tradeoff. The best available answer is a published, audited reference implementation of the attestation API that independent OS developers can implement, combined with a hardware-backed key attestation mechanism that prevents key extraction even from a privileged OS — a technical challenge that no consumer device has fully solved.

Objection: “US hardware requirements will become global censorship infrastructure. Device manufacturers build to the most restrictive standard.”

Once United States law mandates TPM-level content attestation, the same hardware will be sold in countries with less democratic governments. China, Russia, India, and the EU will have their own requirements for what the attestation module should block. Device manufacturers build to a single global standard to avoid maintaining multiple supply chains. The result is that a US law intended to protect children becomes the template for censorship infrastructure used by authoritarian governments against political speech.

This is a real global externality, and the author does not have a clean solution for it. The best mitigations are: (1) the attestation module must be designed to check only a single signed authorization token from the US credentialing authority — it does not accept parallel tokens from other governments without a separate firmware update; (2) the US must use its influence in international standards bodies (ISO, IEEE) to ensure the attestation specification is published as an open standard with architectural limits baked in; (3) the sunset and supermajority reauthorization requirements apply to the US system only — other countries building on the same hardware do so under their own laws, which this proposal cannot constrain.

These mitigations are partial. The global externality is a genuine cost of building hardware-level enforcement in the world’s largest consumer market. The author acknowledges it and includes it here in the hope that a smarter reader will find the solution that the author could not.

These edge cases are not reasons to reject the proposal. They are reasons to be honest about what the proposal cannot guarantee. The author includes them here in the hope that a smarter reader will find the architectural solution that the author could not.

VIII. The Conservative Case

This proposal should appeal to every instinct of the conservative movement.

It believes in **personal responsibility**. It does not ask the government to raise your children. It asks you to make a conscious, annual choice about what your devices may access. The state does not decide for you. You decide for yourself, and you affirm that decision every year with your own hand and your own signature.

It believes in **limited government**. It does not create a new federal agency with broad discretionary authority. It does not hire a new army of regulators. It creates a narrow, specific mechanism with a single purpose and a five-year sunset, using a token registry that contains no names and cannot be used for surveillance.

It believes in **free markets**. It does not ban adult content. It does not tell consenting adults what they may view. It does not pick winners and losers among content platforms. It applies one uniform rule at the device level and lets the market sort out the rest. The credential is free. The government collects nothing.

It believes in **federalism**. This proposal preempts the growing patchwork of twenty-five different state age verification laws, each with different requirements, different standards of evidence, and different penalties. It replaces them with one national standard. It does not tell the states what to do. It sets a floor and allows the states to go no further. If California wants stricter regulation, it may choose to do so within the federal framework.

It believes in **the family**. The unit of society is not the individual. It is the family. And the family has a right to determine its own boundaries. This proposal does not tell the parent what those boundaries should be. It gives the parent a tool to enforce them. It gives the parent a mechanism. It gives the parent a choice.

And it believes in the **dignity of the person**. The pornography industry treats human beings as objects to be consumed. It traffics in the degradation of women, the exploitation of the vulnerable, and the sexualization of children. This industry is not a legitimate business. It is a parasite on the human spirit.

A conservative movement that would not hesitate to regulate a chemical that poisons a child's body should not hesitate to regulate a product that poisons a child's mind.

IX. The Call

We are told this problem is too big to solve. We are told the internet is too vast, the technology too complex, the legal questions too novel. We are told that children will always find a way, that parents are powerless, that the best we can do is teach our kids to swim in poisoned waters.

This is the counsel of despair. It is also false.

We have solved harder problems. We have reduced smoking among teenagers by 80 percent through a combination of education, taxation, and retail enforcement. We have reduced alcohol-related traffic deaths by half through licensing, enforcement, and public awareness. We have virtually eliminated lead poisoning in children by regulating what goes into our gasoline and our paint.

These were not easy victories. They were not achieved by a single law or a single program. They were achieved by persistent, layered, multi-generational effort that respected the role of the family while refusing to accept the status quo.

We can do the same for our children's digital environment.

The Parent's Key is not a perfect solution. No solution is. It is a workable solution—one that respects the principles we hold dear while acknowledging the reality we face. It gives parents the tool they need. It gives the industry the boundary it lacks. It gives law enforcement the narrow authority required and no more.

And it does not ask a single child to upload a single document, to identify themselves to a single stranger, or to navigate a single system designed to be gamed. It asks adults to be adults.

The child cannot activate the credential. The child cannot complete the acknowledgment. The child cannot present identification at the counter. The child cannot renew the credential. A child's device, without exception, is locked by default from the factory floor. It stays locked unless an adult makes an affirmative, informed, annually-renewed choice to unlock it.

This is not a ban. This is not a filter. This is not a surveillance system.

It is a key. And the key is held by the parent.

That is where it belongs.

X. The Path to Law

This proposal requires federal legislation. We recommend the following structure:

Title 0 — Pilot Program Authorization

Before any provision of this Act applies to more than 10,000 devices, a pilot program must be conducted and its results submitted to Congress. The pilot is limited to:

- **Scale.** No more than 10,000 devices manufactured with the attestation hardware, distributed through participating retailers in three geographically and demographically diverse counties.
- **Duration.** 18 months from the date the first credential is issued in the pilot area.
- **Scope.** Full implementation of the infrastructure: issuance counters, central key registry, local records, attestation firmware, and all five enforcement layers. The pilot is not a partial test — it is the full system at a small scale.

Upon conclusion, the independent privacy and civil liberties inspector must publish a public report measuring each of the following against pre-established benchmarks:

1. False-positive rate across a sampled panel of legitimate domains — if it exceeds 0.01 percent, the pilot automatically fails.
2. Breach attempts against the central registry and local records, and their disposition.
3. Credential denial and delay rates among vulnerable populations — rural residents, disabled adults, non-English speakers, low-income households, and those without reliable internet access for video notarization. If any subgroup experiences a denial rate above 5 percent, the pilot automatically fails.
4. Bypass rate: the proportion of technically savvy minors in the pilot area who successfully circumvent the credential to access commercial adult content.
5. A working demonstration of the open-source attestation API, with at least one independent operating system (Linux, BSD, or equivalent) successfully performing a credential check. This must include a verifiable, auditable resolution of the trust-root problem — either an open trust root with extraction-proof key storage, or a

closed trust root with a published path for independent OS vendors to obtain signing authority.

6. A legislative and industry lobbying index: any bill introduced at any level of government to expand credential categories, and any enforcement-layer company expenditures on such legislation.

The nationwide gate. The credential requirement in Title I takes effect only if Congress approves the pilot results by a joint resolution passed by a three-fifths supermajority vote in both chambers. A simple majority is not sufficient. A narrow partisan majority cannot force nationwide deployment over substantial opposition. If Congress does not pass such a resolution within 180 days of the pilot report's submission, the pilot terminates, the test devices are recalled by the manufacturer at no cost to purchasers, and no further deployment is authorized unless a new pilot is designed and approved by a separate act of Congress.

This gate is intentionally high. The pilot is a test of whether the technical, privacy, equity, and constitutional problems have verifiable solutions. If they do not, the program ends with fewer than 10,000 devices in circulation — a rounding error in a market of 300 million. No irreversible infrastructure. No national database by default. No mission creep before the first lesson is learned.

Title I — The Credential Requirement

Requires any device capable of accessing adult content, manufactured for sale in the United States after January 1, 2028, to include hardware-rooted adult content access controls anchored in the device's security processor (TPM, Secure Enclave, or equivalent). Requires device manufacturers to publish firmware attestation APIs that allow open-source operating systems to implement the credential check — preventing de facto exclusion of open ecosystems. Establishes the informed-consent acknowledgment. Establishes the in-person activation and annual renewal mechanism.

Title II — The Credential Administration

Creates the Digital Content Credential Administration as an independent establishment in the executive branch. Defines the board appointment process. Defines the credential issuance and renewal procedures. Defines the annual independent privacy and civil liberties audit. Establishes the central key registry architecture: device public keys only, no names, no government ID numbers, no device serial numbers in any form — not plain text, not hashed. Requires that names and personal identifying information be stored only at local

issuing counters and never transmitted to the central registry. Defines the two-step law enforcement access procedure: central registry identifies the issuing counter, warrant required at that counter to obtain the name. No fees, no deposits, no money collected from credential holders.

Title III — Supply Chain Enforcement

Amends the existing merchant category code authority for payment processors. Amends the existing authority over advertising networks. Defines the CDN compliance requirement. Establishes the ISP default-block requirement for legacy accounts.

Title IV — Preemption and Severability

Preempts all state and local age verification laws for adult content. Establishes that the credential requirement is the sole federal standard. Includes a severability clause to preserve the remainder if any provision is struck down.

Title V — Privacy Protections

Prohibits the administration from expanding its data collection without an act of Congress. Prohibits law enforcement access without a warrant based on probable cause. Prohibits any form of content-based tracking, logging, or profiling. Creates a private right of action for any violation.

Title VI — Transparency and Sunset

Establishes the annual independent audit requirements: breach attempt count, overblocking rate, law enforcement access log, and a legislative “mission creep” index tracking any bill that proposes expanding the system’s scope. Requires the audit to include a recommendation on whether the program should continue, be modified, or be terminated.

The credential requirement sunsets five years from the effective date of the Act. Continuation requires affirmative reauthorization by a three-fifths supermajority vote in both chambers of Congress based on the evidence — the teen consumption numbers, the overblocking rate, the audit results, the breach attempts. A simple majority cannot renew the program. A narrow partisan majority cannot force renewal over substantial opposition. Only a demonstrated bipartisan supermajority can keep the system alive.

If the system has reduced teen exposure to hardcore pornography, the case for renewal is strong. If the system has been breached, expanded, or ineffective, the case for renewal fails.

The default is expiration. Expansion requires a supermajority vote.

A closing word.

This is a first draft. It will be improved by people smarter than its author. It will be amended in committee, debated on the floor, and challenged in court. That is how the system works. That is how we arrive at something that can stand.

But the core of this proposal—device-level attestation, free credential, local-only records containing no names at the federal level, in-person activation, informed-consent acknowledgment, warrant-only enforcement, and a built-in sunset—that core is sound. It is the only approach that respects both the parent’s authority and the adult’s privacy, that accepts the limits of regulation while pushing the boundaries of what technology can do.

The silence around this issue has lasted long enough. The half-measures have failed. The time for a solution that treats parents as responsible adults and children as worthy of protection is now.